

26STCV11667 26STCV11667

County: los-angeles

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Case Number: 26STCV11667 Hearing Date: July 29, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

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ANITA YIN and CHRIS GRUENWALD,

Plaintiffs,

v.

BLOCK DRUG COMPANY, INC., et al.

Defendants.

Case No. 26STCV11667

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Hearing Date: July 29, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

PLAINTIFFS' MOTION FOR TRIAL PREFERENCE

PURSUANT TO C.C.P. § 36

I.

Background

On April 10, 2026, Plaintiffs Anita Yin and Chris Gruenwald (collectively, "Plaintiffs") filed their complaint alleging Ms. Yin, age 51, developed mesothelioma from exposure to asbestos through asbestos-containing talcum body and foot powders and make-up products.

On July 2, 2026, Plaintiffs filed their motion for trial setting preference under Code of Civil Procedure section 36, subdivisions (d) and (e) arguing that Ms. Yin's health is such that there is substantial medical doubt of her survival beyond six months. Alternatively, Plaintiffs contend that the interests of justice will be served by granting trial preference.

On

July 16, 2026, Defendants Estee Lauder Inc., The Estée Lauder Companies Inc., and Clinique Laboratories (collectively, "Estee Lauder") filed a substantive opposition. Estee Lauder argues in opposition that the court has discretion to deny Plaintiffs' request, the Plaintiffs have not carried their burden under section 36, subdivision (d), and the interests of justice do not support preference here because foundational discovery, like Mr. Gruenwald's deposition, remains incomplete. On July 17, 2026, Defendant L'Oréal USA, Inc. filed a joinder to Estee Lauder's opposition.

On

July 22, 2026, Plaintiffs filed a reply, arguing that Defendants erroneously claim Plaintiffs' evidence failed to prove that there is substantial medical doubt as to Ms. Yin's survival past six months, that Ms. Yin's health has deteriorated since the filing of this motions, and that additional issue, like deposition and discovery issues, are irrelevant to a determination under Code of Civil Procedure section 36.

The court finds that Plaintiffs

failed to satisfy their burden to show they are entitled to trial preference under Code of Civil

Procedure section 36, subdivisions (d) and (e). The evidence does not support a finding that there is significant medical doubt about Ms. Yin's survival beyond six months. Additionally, the evidence does not support a finding that the interests of justice would be served by granting trial preference. The court denies Plaintiffs' motion for trial preference.

II.

Discussion

A.

Legal Standard

The court has discretion to grant a motion for trial preference accompanied by clear and convincing medical documentation concluding that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months and satisfying the court that the interests of justice will be served by granting the preference. (Code Civ. Proc., § 36, subd. (d).) The court may also grant a motion for preference in its discretion if it is supported by a showing that satisfies the court that the interests of justice will be served by granting the preference. (Id., § 36, subd. (e).)

“Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record.” (Id., § 36, subd. (f).) “Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.” (Ibid.)

B.

Analysis

Plaintiff

Anita Yin is 51 years old; in September 2020 she was diagnosed with malignant peritoneal mesothelioma. (Spier Decl., at ¶ 4; Soto Decl., at ¶¶ 2-3.) Since September 2020, Ms. Yin has undergone a plethora of treatments, including chemotherapy with cisplatin and pemetrexed, cytoreductive surgery with hyperthermic

intraperitoneal chemotherapy (Feb. 16, 2021), a video-assisted thoracoscopic surgery (July 30, 2021), immunotherapy with ipilimumab and nivolumab, gemcitabine, and enrollment in a CAR-T cell infusion clinical trial (April 29, 2025). (Soto Decl., at ¶¶ 9-10.) Since her diagnosis, Ms. Yin's counsel witnessed Ms. Yin suffer from symptoms of her illness, including chronic abdominal pain, weight loss, GI issues, physical and mental fatigue, and declining mobility. (Id., at ¶ 11.) Ms. Yin's cancer has continued to progress and due to her current treatments so has her declining outlook on life. (Id., at ¶ 12 ["According to her own testimony, her pain is 'anywhere from [an] eight to ten'...[and] it is 'really hard to get out of bed sometimes'."].) Plaintiffs' counsel opines that Ms. Yin may die suddenly from her disease, infections, and/or unexpected complications and that she will not be able to participate in trial if preference is not granted. (Id., at ¶ 14.)

Ms.

Yin's medical records document her pathology and diagnosis report. (Soto Decl., Exh. A.) The records show that in September 2020, Ms. Yin suffered from a "relatively scanty proliferation of epithelial-type mesothelial cells...in a myxoid matrix" and that the "H&E morphology by itself is strongly suspicious for a mesothelioma." (Id., at p. 2.) Records prior to September 2020 indicate negative pap smears and lack of malignant cells. (Id.) The most recent record in the exhibit is from September 2021, indicating Ms. Yin had a shave biopsy for a right plantar wart. (Id., at p. 1.) The court notes that Plaintiffs directed the court to access additional medical records through two ShareFile links. Plaintiffs were required to file relevant records supporting their trial preference motion together with the other supporting papers. Instead, the ShareFile links are to 21 documents totaling more than 8000 pages. Such an undifferentiated document dump ill-serves Plaintiffs' motion and is an unwarranted imposition on the court. "It is [the parties'] duty to direct the court to evidence that supports their claims. It is not the court's duty to rummage through the papers to construct ... their case." (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 75.)

Ms.

Yin testified in deposition that in the last year her cancer progressed and that she had been undergoing chemotherapy and clinical trials. (Soto Decl., Exh. C at 12:21:11-12:21:23.) Ms. Yin had applied to about five clinical trials, taking her all over the United States. (Id., at 12:22:1-12:22:15.) The plan was for Ms. Yin to restart her chemotherapy the day after her deposition. (Id., 12:23:19-12:23:23.) As to her pain, Ms. Yin

states that it can be “anywhere from eight to ten” even with a high pain tolerance, and it has been an “ongoing” and “consistent” issue since 2020. (Id., at 12:25:1-12:25:17.) Ms. Yin also suffers from daily fatigue and loss of appetite due to the cancer. (Id., at 12:26:1-12:27:24.) As to her activity level, Ms. Yin states that prior to her diagnosis, she was active and enjoyed “lots of outdoor stuff” like hiking, camping, and walking her dogs; now, she “just can’t do that anymore” due to the fatigue, discomfort, and lack of appetite. (Id., at 12:29:17-12:30:1, 12:38:10-12:38:23.)

Dr.

Laurence Spier, a Cardiothoracic surgeon who is not Ms. Yin’s physician but has reviewed her medical records, declares that he spoke to Ms. Yin on June 19, 2026. (Spier Decl., at ¶ 8.) Dr. Spier states that he was able to glean from their conversation that Ms. Yin “is suffering from chronic pain due to the abdominal mesothelioma.” (Ibid.) Ms. Yin’s latest CT scan also shows that her cancer has progressed further and that her oncologists are developing a new treatment plan to be published in the coming weeks. (Ibid.) Dr. Spier declares that “given [Ms. Yin’s] incurable malignancy, no durable improvement in her health can reasonably be expected (Id., at ¶ 9.) Additionally, Dr. Spier opines on the likelihood that Ms. Yin’s condition is likely to continue deteriorating:

“My medical

opinion is, due to Mrs. Yin’s mesothelioma and the continued progression of her disease, her ability to participate in a deposition and trial is already impaired and will continually decline further as time passes. As Mrs. Yin’s mesothelioma progresses as it has already done and undoubtedly will continue to do, she is at risk of it spreading to her other organs. Mrs. Yin is already suffering increasing pain, fatigue, digestive issues, and weakness from her mesothelioma and is at high risk of rapid decline from infection or cancer progression.

Drawing upon my

professional training, clinical experience, and direct review of Mrs. Yin’s medical records and disease progression, I can state with medical certainty that her condition will continue to deteriorate. Mrs. Yin is expected to suffer from escalating symptoms including pain, breathlessness, fatigue, physical weakness, and continued unintended weight loss. Despite ongoing treatment, her disease remains aggressive, incurable, and continuously progressing, placing her at persistent and significant risk for rapidly emerging infections and

other serious complications. These health challenges will further compromise her energy, cognitive clarity, and ability to communicate effectively. As a result, her capacity to participate in legal proceedings—such as deposition and trial—will steadily decline. The longer her participation is delayed, the less likely it becomes that she will be able to contribute meaningfully, until ultimately, she may be unable to participate at all. Mrs. Yin's illness is terminal, and her outlook is poor."

(Id.,

at ¶¶

10-11.) Dr. Spier concludes that there is "substantial medical uncertainty regarding Mrs. Yin's survival beyond six months from the date of this declaration." (Id., at ¶ 12.)

In opposition, Estee Lauder argues

that Plaintiffs have not presented clear and convincing medical documentation raising substantial doubt of Ms. Yin's survival beyond six months as required under Code of Civil Procedure section 36, subdivision (d). Estee Lauder notes that Dr. Spier is not Ms. Yin's personal oncologist and provided opinions based on a phone call and looking at Ms. Yin's medical records. (Opp., at p. 4.)

Estee Lauder acknowledges that the declarations describe "significant medical hardship," but the evidence, specifically Dr. Spier's declaration, "does not identify the objective prognostic markers, clinical criteria, or individualized methodology by which he reached that conclusion" and does not state that Ms. Yin is in hospice or palliative-only care, that her current treatment options have failed, or that her treating oncologists have concluded she is within a six-month survival window." (Opp., at p. 5.) Estee Lauder also contends that Plaintiffs' argument that Defendant have a financial incentive to delay this trial is unsupported and irrelevant to this issue here. (Ibid.)

Estee

Lauder also argues that the interests of justice will not be served if trial preference is granted because Defendants' due process rights will be impaired. Specifically, Estee Lauder argues that they will have no opportunity to file dispositive motions, to complete a substantial amount of discovery, and to reasonably investigate factual questions regarding work loss, product usage, and alternate/potential sources of Ms. Yin's exposure, especially since Mr. Gruenwald's deposition has not yet been taken. (Opp., at pp. 6-9.)

In

reply, Plaintiffs maintain that their evidence proves that there is substantial medical doubt as to Ms. Yin's survival beyond six months. Plaintiffs also contend that Ms. Yin's health has deteriorated since the filing of this motion: on July 17, 2026, Ms. Yin was admitted to the hospital due to sepsis concerns. (Reply at p. 5; Gruenwald Decl., Exh. A.) Although sepsis was ruled out, Ms. Yin was asked to return to the hospital the following day due to a bacterial infection, where she remains presently and has had her next chemotherapy session postponed. (Ibid.) Mr. Gruenwald states that Ms. Yin "is currently stable," but her health "has continued to decline in the weeks since" this motions filing. (Gruenwald Decl., ¶¶ 5-6.) Plaintiffs further argue in reply that additional issues, like deposition and discovery issues, are irrelevant to a determination under Code of Civil Procedure section 36.

The court accepts Dr. Spier's declaration that between September 2020 and June 2026, Ms. Yin's symptoms have worsened. But the court finds that Plaintiffs have failed to show by clear and convincing medical documentation that there is substantial medical doubt that Ms. Yin will survive beyond six months. Although Plaintiffs' counsel opines that Ms. Yin may die suddenly from her disease, the record does not support this assertion. Plaintiffs rely on medical records primarily from around the time of her diagnosis. Although Dr. Spier reviewed Ms. Yin's records, Dr. Spier documents Ms. Yin's worsening symptoms but does not provide more recent scans or examinations indicating Ms. Yin's disease has worsened to the point that there is substantial medical doubt that she will survive more than six months. Dr. Spier refers to Ms. Yin's latest CT scan, but Plaintiffs did not submit the scan as evidence. While the results state "multiple new and enlarging hepatic metastatic lesions" and "significant interval progression of peritoneal masses with extensive small bowel and colonic serosal implants resulting in small bowel obstruction with a fluid distended jejunal loop measuring up to 5.3 cm," the report does not speak to Ms. Yin's survival timeline. (Lewis Decl., Exh. A.) Dr. Spier states that there is "substantial medical uncertainty regarding Mrs. Yin's survival beyond six months from the date of this declaration." His evaluation that Ms. Yin's disease may imminently result in death lacks clear and convincing medical documentation.

Similarly, although Mr. Gruenwald states that Ms. Yin's health "has continued to decline" since the filing of this motion, he also states that she is "currently stable." (Gruenwald Decl., ¶¶ 5-6.) Plaintiffs have not submitted the medical records

associated with Ms. Yin's current hospitalization. Therefore, Plaintiffs' evidence is insufficient to show that Plaintiffs are entitled to trial preference under Code of Civil Procedure section 36, subdivision (d).

The

court does not consider Plaintiffs' claim under section 36, subdivision (e), because the "interest of justice" standard is part of subdivision (d). The court notes that when a preferential trial date is granted, all parties must work with exceptional diligence to prepare for trial. The court disagrees with Estee Lauder's argument that its interests in discovery and dispositive motions – while legitimate – may prevail even when the grounds for preference are established. Courts have concluded that the Legislature has prioritized the right to a preference if the criteria are met. (*Miller v. Superior Court* (1990) 221 Cal.App.3d 1200, 1206 ["Thus, relevant precedent upholds the absolute command of section 36(a) in light of its plain meaning, despite recognition that in certain instances there are strong countervailing considerations—deriving from principles of efficient trial court management; from fairness and due process to other litigants; and from divergent public policy or statutory contexts in which the section 36(a) mandate may be difficult, impractical, or impossible to realize"]; *Pabla v. Superior Court* (2023) 90 Cal.App.5th 599, 604, fn. 5.)

This

denial of a preferential trial setting is without prejudice to a motion based on future changed circumstances.

III.

Conclusion

Plaintiffs' motion for trial setting preference is denied.

Estee Lauder is ordered to give notice.